

		the circumstances of the accident with exactitude. The conditions on which the expert's analysis rests must simply be “substantially similar” to those of the actual occurrence. <i>Pannu v. Land Rover North America, Inc.</i>, (2011) 191 Cal.App.4th 1298, 1318. Photographs of the accident scene, although “highly pertinent” evidence (<i>People v. Turner</i> (1990) 50 Cal.3d 668, 706) must be made under “substantially similar”—but not necessarily identical—conditions. <i>Anello v. Southern Pacific Co.</i> (1959) 174 Cal.App.2d 317, 323. “The standard that must be met in determining whether the proponent of the experiment has met the burden of proof of establishing the preliminary fact essential to the admissibility of the experimental evidence is whether the conditions were substantially identical, not absolutely identical.” <i>Culpepper v. Volkswagen of America, Inc.</i> (1973) 33 Cal.App.3d 510, 521. It is too soon at the discovery stage to foreclose Plaintiff’s inquiry. The admissibility of evidence derived from the inspection can be determined at trial. For all the above reasons, the motion is denied. Plaintiff is awarded sanctions in the amount of \$1,985 against Defendant, to be paid within 30 days. Plaintiff to give notice.
111	2023-01345045 Xing vs. Cao	Motion to Compel Arbitration Defendant Pingchao Cao’s motion to compel arbitration of Plaintiff Jianyong Xing claims in his Second Amended Complaint is continued to June 9, 2025 at 2:00 pm in Dept. C27. Defendant moves for an order to compel Plaintiff to arbitrate his claims before the Shijiazhuang Arbitration Commission under the laws of the People’s Republic of China, and to dismiss this lawsuit. Counsel for Plaintiff filed a declaration in opposition stating that he is moving to withdraw as counsel because he has lost contact with his client who he believes resides in China. (Sipprelle Decl., ¶¶ 2-3.) He states that because he has lost all contact with Plaintiff he has been unable to obtain the information and documentation which would be necessary to oppose Defendant’s motion to compel arbitration, and believes it would be manifestly unjust for the Court to proceed with the hearing on Defendant’s motion to compel arbitration as scheduled. (Sipprelle Decl., ¶ 4.) Counsel currently has a motion to be relieved scheduled for July 14, 2025. The Court finds that under these circumstances the interests of justice will be best served by continuing the hearing on the motion to compel arbitration, and advancing the hearing on the motion to withdraw as counsel. No prejudice to Defendant has been demonstrated that would result from a brief continuance of his motion. Plaintiff counsel’s motion to be relieved as counsel of record is advanced to this date and continued to May 19, 2025 at 2:00 p.m. in Department C27. Plaintiff’s counsel is ordered to give notice of all rulings to all parties, including his client at his last known address(es).

112	2023-01339201 Xu vs. Wang	Motion for Leave to Amend The motion of Defendants Yongmei Zhang, Hongbo Wang, Zhipeng Investment LLC, Bay Vista Investment LLC, Bo Kang Real Estate Investment LLC (collectively, “Defendants”) for leave to file their proposed first amended answer (“FAA”) is granted. The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. Code Civ. Proc. § 473(a) (1). The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code. Code of Civ. Proc. § 473(a) (1). Additionally, any judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading or pretrial conference order. Code of Civ. Proc. § 576. A motion to amend a pleading before trial must: (1) include a copy of the proposed amendment or amended pleading; (2) state what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and (3) state what allegations are proposed to be added to the previous pleading, if any, by page, paragraph, and line number, the additional allegations are located. CRC 3.1324(a). A separate declaration must accompany the motion and must specify: (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier. CRC 3.1324(b). Defendants have substantially complied with the requirements of CRC 3.1324. To the extent Defendants have not completely complied with the requirements of CRC 3.1324, this does not impair the Court’s ability to review and assess the FAA. California courts generally allow great liberality, at all stages of the proceeding, in permitting the amendment of pleadings in order to resolve cases on their merits. <i>IMO Development Corp. v. Dow Corning</i> (1982) 135 Cal. App. 3d 451, 461. Because the policy favoring amendment is so strong, “it is a rare case in which a court will be justified in refusing a party leave to amend his pleadings so that he may properly present his case.” <i>Morgan v. Superior Court</i> (1959) 172 Cal. App. 2d 527, 530 (internal quotations omitted). This is particularly true for amendment of answers, as a defendant denied leave to amend is permanently deprived of a defense. <i>Hulsey v. Koehler</i> (1990) 218 Cal. App. 3d 1150, 1159. This liberality only applies so long as there is no prejudice to the opposing party. <i>Higgins v. Del Faro</i> (1981) 123 Cal. App. 3d 558, 564. Denial of leave to amend is appropriate where inexcusable delay <u>and</u> probable prejudice to the opposing party is shown. This may happen where a proposed amendment opens up an entirely new field of inquiry without any satisfactory explanation as to why the major change in point of attack had not been made long before trial. <i>Estate of Murphy v. Gulf Ins. Co.</i> (1978) 82 Cal. App. 3d 304, 311. If the party seeking the amendment has been dilatory, and the delay has prejudiced the opposing party, the judge has discretion to deny leave to amend. <i>Hirsa v. Sup.Ct. (Vickers)</i> (1981) 118 Cal. App. 3d 486, 490; <i>Melican v. Regents of Univ. of Calif.</i> (2007) 151 Cal. App. 4th 168, 176; <i>Fisher v. Larsen</i> (1982) 138 Cal. App. 3d 627, 649 (finding where plaintiff knew for over five months that certain claims had not been properly pleaded, and took no action to amend until after a summary judgment had been granted against it, it was not an abuse of
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